

11. 9:00 AM CASE NUMBER: C24-03382
CASE NAME: LAURIAN STUDEVILLE VS. ANTHONY PANTUSO
***HEARING ON MOTION IN RE: FOR LEAVE TO FILE A CROSS-COMPLAINT**
FILED BY: KORZH, DMYTRO
TENTATIVE RULING:

Defendants Viktoriia Korzh and Dmytro Korzh (“Defendants”) filed a Motion for Leave to File a Cross-Complaint on January 27, 2026 (the “Motion for Leave to File”). The Motion for Leave to File was set for hearing on June 8, 2026. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The unopposed Motion for Leave to File is GRANTED. Defendants are granted leave to file the proposed Cross-Complaint herein. Such Cross-Complaint shall be filed and served **within ten (10) days of notice of entry of this order.**
2. The parties shall mediate the claims in the Cross-Complaint along with plaintiffs’ claims pursuant to the prior CMC issued herein.
3. The Court shall issue the order after hearing.

12. 9:00 AM CASE NUMBER: C25-00212
CASE NAME: K. S. VS. COUNTY OF CONTRA COSTA
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: COUNTY OF CONTRA COSTA
TENTATIVE RULING:

Before the Court is Defendant County of Contra Costa’s Demurrer to Complaint. The Complaint alleges a single cause of action for negligence based on Government Code sections 815.2, 815.4, and 815.6.

Factual Allegations

This matter pertains to allegations of child abuse suffered by Plaintiff while in the foster care system in Contra Costa County. In approximately January 2002, Plaintiff was placed in a foster home owned, operated, and managed by non-moving Defendant Wesley Group Home, Inc. (¶ 26.) The foster home was licensed and overseen by the County. (*Ibid.*) Later that year, Plaintiff was transferred to a group home also operated by Defendant Wesley. (*Ibid.*)

In approximately 2002, Plaintiff was sexually abused and assaulted by an adult staff member of the Facility, when Plaintiff was seventeen years old. (¶ 27.) The abuse occurred regularly over the period of several months. (¶ 28.) It is alleged that Defendants observed, or should have observed, signs that

made them aware of the abuse. (¶ 29.) On information and belief, Defendants had actual notice of the sexual abuse as another minor resident of the Facility told Defendants of the sexual abuse of Plaintiff by the staff member. (¶ 30.) No action was taken by Defendants to prevent the abuse, and it was allowed to continue. (*Ibid.*)

Initial Consideration

The Court notes that it received what is styled as “Reply Brief: Defendant County of Contra Costa’s Demurrer to Complaint,” on June 1, 2026. Upon reading the brief, however, it appears that the document is a reply to a motion for leave to amend. This is based in part on the County’s ‘summary of Plaintiff’s argument’ being, in part:

That despite no breach of mandatory duty cause of action being alleged, the County breached miscellaneous mandatory statutory duties and the Plaintiff should be permitted to amend the complaint to insert this newly proposed cause of action in the form of a negligence cause of action. (Reply 3:3-5.)

As discussed below, the Complaint in this matter **does** include a ‘breach of mandatory duty’ claim; it is not a ‘newly proposed cause of action’ in this matter. That argument appears to be associated with another case pending before this Court – *D.B. v. County of Contra Costa*, case no. C22-01913, which is set for hearing on a motion for leave to amend.

To the extent the Reply makes argument relevant to the analysis in this case – the Court will address those arguments. For example, discussing the extent that *K.C. v. County of Merced* (2025) 109 Cal.App.5th 606 controls in this matter.

Legal Standard

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 (“*Doe*”)), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) A complaint must be “liberally construed” and a demurrer “overruled if any cause of action is stated by the plaintiff.” (*Amacorp Industrial Leasing Co. v. Robert C. Young Associates, Inc.* (1965) 237 Cal.App.2d 724, 727.)

Legal conclusions are insufficient. (*Id.* at 1098–99; *Doe* at 551, fn. 5.) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) A demurrer lies only for defects appearing on the face of the complaint or from matters of which the court must or may take judicial notice. (Code Civ. Proc. § 430.40; see *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Analysis

Whether a public entity or employee has a duty to the plaintiff is usually a threshold issue to determine before addressing immunity. The parties do not dispute that the County and its employees

owed a duty to Plaintiff. Instead, the focus of the County's demur is whether the County's employees are entitled to discretionary act immunity – and therefore, the County itself is also entitled to immunity.

Plaintiff argues that discretionary act immunity does not apply. In addition, she argues that even if discretionary act immunity does apply, the County is still liable based on breach of mandatory reporting duties – which are separately actionable.

Discretionary Act Immunity

The County argues that the recent case of *K.C. v. County of Merced* (2025) 109 Cal.App.5th 606 is controlling. The facts of *K.C.* are similar to those in the present matter. As summarized by the *K.C.* court, the “operative complaint alleged: (1) K.C. was sexually assaulted at two separate foster care placements in the 1970's; (2) K.C. gave notice to County – via social workers – of this abuse; and (3) no investigative or corrective action was taken.” (*Id.* at 616.)

The *K.C.* court began its analysis by noting that “[w]hether or not a public employee is immune from liability under [Government Code] section 820.2 depends ... upon whether the act [or omission] in question was ‘discretionary.’” (*Id.* at 617.) It recognized that such immunity does not extend to all decisions made by public employees, but that “discretionary immunity ‘is limited to policy and planning decisions, and does not reach ‘lower level decisions that merely implement a basic policy already formulated.’” (*Ibid.*) The *K.C.* court then went on to explain at length why the discretionary immunity under Government Code section 820.2 applied to the case before it:

The social workers' decisions at issue relate to “the investigation of child abuse” (*Jacqueline, supra*, 155 Cal.App.4th at p. 466) and discontinuation of a foster home placement (*Becerra v. County of Santa Cruz* (1998) 68 Cal.App.4th 1450, 1466 (*Becerra*)) “based upon suspicion of abuse” (*Alicia T. v. County of Los Angeles* (1990) 222 Cal.App.3d 869, 881 (*Alicia*)). They not only “involve[] the exercise of analysis and judgment as to what is just and proper under the circumstances” (*Kemmerer, supra*, 200 Cal.App.3d at p. 1438) but also constitute “sensitive policy decision[s] that require[] judicial abstention to avoid affecting a coordinate governmental entity's decisionmaking or planning process” (*Barner v. Leeds* (2000) 24 Cal.4th 676, 688 (*Barner*)). (See *Alicia, supra*, at p. 883 [continuing exercise of discretion “in favor of the protection of minor children”].) These qualities hold true for, as here, “preliminary determinations” that “reports of possible abuse” “did not warrant initiation” of further action. (*Jacqueline, supra*, at p. 468; see *Ortega v. Sacramento County Dept. of Health & Human Services* (2008) 161 Cal.App.4th 713, 733 [“[E]valuation of information is an integral part of ‘the exercise of the discretion’ immunized by [Government Code] section 820.2.”]; cf. *Conway v. County of Tuolumne, supra*, 231 Cal.App.4th at p. 1015 [police officer's decision “to investigate or not investigate” a vehicle accident immunized by Gov. Code, § 820.2].)

The *K.C.* court went on to explain the policy reasons in favor of upholding immunity for social workers. (*Id.* at 618.) The Court then noted that, on appeal, *K.C.* argued that the social worker's failure to investigate or take corrective action was ‘operational and ministerial’ because it was done ‘in the

course of the continuing supervision of her foster care'; and those types of decisions are not discretionary, policy-type decisions. (*Ibid.*) K.C. argued that the "decision to remove a child from his or her natural parents and place that child in custodial foster care must be distinguished from decisions made while supervising a foster child *after* the decision to undertake custody and initiate foster care is made. While the former decisions may be discretionary, the latter are operational and ministerial."

Those arguments mirror the arguments made by Plaintiff in this action. For example, Plaintiff argues in her opposition that "there is a clear line of demarcation between the basic policy decision to place a child in foster care and the ministerial acts of county social workers implementing that decision. While the former is entitled to immunity under Gov. Code section 820.2, the latter decisions are not." (Opp. at 10:27-11:2.) The K.C. court addressed these arguments:

We do not dispute that decisions pertaining to foster care placement are discretionary acts within the meaning of Government Code section 820.2. (*Gabrielle A. v. County of Orange* (2017) 10 Cal.App.5th 1268, 1285 (*Gabrielle*); *Christina C. v. County of Orange* (2013) 220 Cal.App.4th 1371, 1381 (*Christina*).) Nor do we question that "maintenance of a child in a foster home involves an obligation of continued supervision" and much of what is required "in terms of continued administration of the child's welfare undoubtedly constitutes simple and uncomplicated surveillance which reasonably could be characterized as ministerial." (*Ronald S. v County of San Diego* (1993) 16 Cal.App.4th 887, 898.) However, decisions as to whether to undertake investigative or corrective action in response to reported child abuse fall outside the ambit of such surveillance and are "[no] less 'discretionary' for purposes of the immunity of Government Code section 820.2 than the original placement decision." (*Becerra, supra*, 68 Cal.App.4th at p. 1466.) We do not accept the notion that a "subjective decisionmaking process" "could [be] transmute[d]" "into a ministerial act" (*Ronald, supra*, at p. 897) simply because that process assesses incidents that occurred within a foster home.

The K.C. court then addressed the arguments that the demurrer should be overruled because "the operative complaint did not indicate 'an employee of the County made a considered ... decision' or 'actually exercised' 'discretion ... by the weighing of risks and benefits in deciding on the challenged course of action.'" (*Id.* at 619.)

While a finding of immunity is precluded "solely on grounds that 'the [affected] employee's general course of duties is "discretionary"'" (*Caldwell, supra*, 10 Cal.4th at p. 983, italics omitted) and "requires a showing that 'the specific conduct giving rise to the suit' involved an actual exercise of discretion, i.e., a '[conscious] balancing [of] risks and advantages'" (*ibid.*, italics omitted), "a strictly careful, thorough, formal, or correct evaluation" is not mandatory (*ibid.*, italics omitted). "Such a standard would swallow an immunity designed to protect against claims of carelessness, malice, bad judgment, or abuse of discretion in the formulation of policy." (*Id.* at pp. 983–984; see *Gabrielle, supra*, 10 Cal.App.5th at p. 1285 ["Courts have determined immunity applies to such decisions no matter how horrible the outcome, including a situation where a social worker returned a child to a father, who stabbed the child in the heart

and lungs shortly thereafter.”]; *Christina, supra*, 220 Cal.App.4th at p. 1381 [discretionary immunity “applies even to ‘lousy’ decisions in which the [social] worker abuses his or her discretion, including decisions based on ‘woefully inadequate information.’”].) (*Id.* at 619.)

As is the case here, the *K.C.* court summarized its analysis of the above with respect to the allegations of the complaint before it:

Here, under a “fair reading” of the complaint (*Caldwell, supra*, at p. 984), *K.C.* essentially alleged County’s social workers were confronted with reports of sexual abuse that should have prompted investigative or corrective action, but they failed to properly exercise their discretion to do so. “[C]laims of improper evaluation cannot divest a discretionary policy decision of its immunity.” (*Caldwell, supra*, at p. 984, fn. & italics omitted.) (*Id.* at 619-20.)

Accordingly, the *K.C.* court found that the County’s demurrer was properly sustained without leave to amend. (*Id.* at 620.)

Plaintiff attempts to distinguish *K.C.* by primarily relying on *D.G. v. Orange County Social Services Agency* (2025) 108 Cal.App.5th 465. Initially, it is worth noting that the *K.C.* court was provided with this authority and discussed it in a footnote, noting that *D.G.* addressed whether discretionary immunity was a proper basis for granting summary judgment “and is therefore inapposite.” (*K.C.* 109 Cal.App.5th at 620 fn. 9.)

“Summary judgment ... provides a method by which, if the pleadings are *not* defective, the court may determine whether the triable issues apparently raised by them are real or merely the product of an adept pleading.” (*Leo F. Piazza Paving Co. v. Foundation Constructors, Inc.* (1981) 128 Cal.App.3d 583, 591, fn. 4 italics in original.) Conversely, “[t]he purpose of a demurrer is to test the legal sufficiency of a pleading not to test the evidence or other extrinsic matters.” (*Ibid.*) In contrast to *D.G.*, the instant case involves a defective complaint. As such, *D.G.* is not applicable.

Plaintiff also cites *Elton v. County of Orange* (1970) 3 Cal.App3d 1053 as support for their position. There, the court determined that decisions about the maintenance, care, or placement of a child ‘do not achieve the level of basic policy decisions’ and are not immune from liability under section 820.2. (*Id.* at 1058; see Opp. at 10:18-26.) It has been noted that *Elton* has limited, if any, precedential value as it was decided before the adoption of statutes requiring social workers to exercise discretion. (*Becerra v. County of Santa Cruz* (1998) 68 Cal.App.4th 1450, 1464.) It was also persuasively distinguished in *Ronald S. v. County of San Diego* (1993) 16 Cal.App.4th 887 which found *Elton* to be a “difficult decision.” (*Id.* at 898.) As the *Ronald S.* court explained: “Selecting and certifying a foster home for care of dependent children seems to us to be an activity loaded with subjective determinations and fraught with major possibilities of an erroneous decision. It appears to us that foster home placement, like adoption placement, constitutes an activity of a co-equal branch of government, and that the discretionary decisions made in connection therewith should be deemed beyond the proper scope of court review.” (*Ibid.*)

This rationale applies with equal strength to decisions related to removing a child from a foster home

based on allegations of abuse.

Mandatory Reporting Duties

Plaintiff points out in opposition that the County's demurrer must fail "because Plaintiff sufficiently alleges breaches of mandatory duties for which there is no immunity." (Opp. at 11:19-20 citing *Holman v. County of Butte* (2025) 111 Cal.App.5th 177, Govt Code § 815.6.) The Complaint **does** specifically allege a basis of liability against the County under California Government Code section 815.6. (§§ 56-57, 69.) Section 815.6 states:

"Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty."

The Complaint alleges several alleged mandatory duties which were allegedly not complied with. (§§ 23, 46, 57.)

The County does not address this alleged basis for liability in its demurrer. As the County's notice indicates, it demurred "on the ground that discretionary immunity under Government Code section 820.2 bars Plaintiff's negligence claim against the County." The negligence claim, however, is based on both alleged discretionary actions as well as alleged violations of mandatory duties. The County does not demur to the alleged violations of mandatory duties as a basis for the negligence claim. It does not discuss liability under section 815.6 at all – not even in reply.

"A demurrer does not lie to a portion of a cause of action." (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682.) "A demurrer must dispose of an entire cause of action to be sustained." (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119.) To the extent the County is claiming that the allegations do not support a 'negligence' cause of action, if "the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against the demurrer." (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38.)

The County also appears to argue that the holding in *K.C. v. County of Merced* (2025) 109 Cal.App.5th 606 controls and does not allow for liability for violation of mandatory reporting duties under section 815.6. The *K.C.* court, however, did not address that issue. There were no discussions of section 815.6, nor any allegations of violations of mandatory reporting violations.

"An opinion is not authority for a point not raised, considered, or resolved therein." (*In re T.C.* (2012) 210 Cal.App.4th 1430, 1433 quoting *Styne v. Stevens* (2001) 26 Cal.4th 42, 57.)

Conclusion

The County's demurrer to the Complaint is **OVERRULED**.